

University Grants Commission (Admission To Specified Professional Programmes) Interim Regulations, 2003

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University Grants Commission (Admission To Specified Professional Programmes) Interim Regulations, 2003

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University Grants Commission (Admission To Specified Professional Programmes) Interim Regulations, 2003

Rule

UNIVERSITY-GRANTS-COMMISSION-ADMISSION-TO-SPECIFIED-PROFESSIONAL-PROGRAMMES-INTERIM-REGULATIONS-2003 of 2003

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University Grants Commission (Admission To Specified Professional Programmes) Interim Regulations, 2003

1889.

26th.

December, 2003

In pursuance of the Judgment on August 14, 2003 of the 5 Judge Bench of the Supreme Court in the case of Islamic Academy of Education and Ors. v. State of Karnataka and Ors. read with Majority Judgment on October 31, 2002 of 11 Judge Constitution Bench of the Supreme Court in the case of TMA Pai Foundation and Ors. v. State of Karnataka and

Ors. and with a view to avoiding mental, physical and financial burden on students due to multiplicity of entrance examination(s), and in exercise of the powers conferred by clause (g) of subsection (1) of Section 26 of the University Grants Commission Act, 1956 (

No. 3 of 1956

), and in partial supersession of Interim Policy Regulations No.F.1-6/2003 (CPP-II) dated 10th June, 2003, the University Grants Commission (UGC) makes the following Interim Regulations for admission to specified professional programmes in the country during the year 2004-2005.

1.

Short title, application and commencement.

(1)

These Regulations may be called the University Grants Commission (Admission to specified professional programmes) Interim Regulations, 2003.

(2)

They shall apply to every university established or incorporated by or under a Central Act, a Provincial Act or a State Act, including all institutions recognized by/or affiliated to them and every Institution deemed to be University under Section 3 of the UGC Act, 1956 conducting specified professional programmes.

(3)

They shall come into force for all admissions to the specified programmes during the year 2004-2005.

2.

Definitions.

- In it In these Regulations unless the context otherwise requires :-

2.1

"Institution" means every university established or incorporated by or under a Central Act, a Provincial Act or a State Act, including all institutions recognized by or affiliated to them and every Institution deemed to be University under Section 3 of the UGC Act, 1956.

2.2

"Competent Authority" means---

(i)

The Commission or its designated agency in relation to the Central Universities, deemed universities, universities set up by a private trust or a society on its own or under Section 25 of the Companies Act or under a Central legislation, or universities set up as a joint venture between the Central Government and a private trust or society or company, and private professional educational institutions affiliated to or recognized by such or other Central universities;

(ii)

The State/Union Territory Government or its designated agency in relation to State Universities, universities set up by a private trust or a society on its own or under Section 25 of the Companies Act or under a State/Union Territory legislation, or universities set up as a joint venture between the State/Union Territory Government and a private trust or society or company, and professional educational institutions within the State affiliated to or recognized by such or other State universities.

3.

Common Entrance Examination(s).

- The admissions to specified professional programmes in the country for the year 2004-2005 shall be made on the basis of merit determined through common entrance examination(s) as enumerated below :-

3.1

All India Common Entrance Examination(s)

These examinations shall be for all the Institutions that are presently admitting all their students or certain percentage of them on an All India basis.

3.1.1

. Entrance Examination for admissions to undergraduate programmes in Engineering, Architecture & Planning and Pharmacy

Admissions on All India basis to the undergraduate programmes in Engineering, Architecture & Planning and Pharmacy in all Institutions in the country shall be made through an All India Engineering, Architecture & Planning and Pharmacy

Entrance Examination (AIEEE) conducted by the Central Board of Secondary Education (CBSE). The AIEEE shall, however, not be applicable for admissions to Indian Institute of Technologies, Indian School of Mines (Dhanbad) and Institute of Technology (Banaras Hindu University) that are admitting students on the basis of Joint Entrance Examination conducted by the Indian Institute of Technologies.

3.1.2

. Entrance Examination for admissions to Master in Business Administration/Postgraduate Diploma in Management (or equivalent) programmes

Admissions to MBA/PGDM or equivalent programmes shall be through one of the five (5) national entrance examination(s), namely CAT (conducted by IIMs), JMET (conducted by IITs), MAT (conducted by AIMA), ATMA (conducted by AIMS) and XAT (conducted by XLRI). All institutions admitting students on All India basis will have to opt for one of these exams and announce it in their prospectus.

3.1.3

. Entrance Examination for admissions to Master of Computer Application programmes Admissions to the MCA or equivalent programmes in all institutions in the country on an All India basis shall be made through an All India MCA Common Entrance Test (AIMCAET) conducted by IIT, Roorkee.

3.2

State Level Common Entrance Examination(s)

All States shall hold their own common entrance examinations for admissions to Institutions within their States for students to be admitted against the State quota. These examinations shall be restricted to admission of students from within the State only. However, admission of all students by those States which do not conduct their own entrance examination shall be made using the merit determined by the relevant All India Common Entrance Examination.

4.

Admissions under the existing approved quotas shall be made strictly on the basis of inter-se merit in the relevant common entrance examination followed by counseling as prescribed.

5.

Management Quota.

- Management quota/seats in private unaided self-financing institutions shall be filled either by the Common Entrance Examination as above or through a Common Entrance Examination conducted by an approved agency (including an Association of all colleges of a particular type in the State). This option for filling up management quota/seats shall be exercised by the institutions before issue of prospectus and intimated to the Competent Authority.

6.

After the admission process is over, all Institutions shall submit to the Competent Authority the list of students admitted, along with their ranks obtained in the Common Entrance Examination by the students, the fees collected and all such particulars and details as may be required by the Competent Authority.

7.

Penalty.

- If it is found that any student has been admitted de hors merit, penalty shall be imposed on that Institution as per the provisions contained in the UGC Act and in appropriate cases recognition/affiliation may also be withdrawn.

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Secretary

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